

BC521491 BC521491

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Mark Zimny v. Henry H. Bahk et al.,

TENTATIVE RULING

The December 14, 2018 judgment is not void. The motion is DENIED.

Introduction

On September 16, 2013, Plaintiff filed the Complaint in this action.

On December 14, 2018, this Court granted judgment in favor of Judgment Creditor A-Ju Tours, Inc., and against Judgment Debtor Henry M. Lee, in the principal amount of \$115,000.00.

On June 1, 2026, Henry M. Lee filed the instant Motion to Set Aside Void Judgment and All Orders Derived From the Void Judgment.

On June 23, 2026, Cross-Complainants A-Ju Tours, Inc., and Henry H. Bahk filed an Opposition.

Legal Standard

Code of Civil Procedure section 473, subdivision (d) provides that:

The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.

(Code Civ. Proc., § 473(d).)

When a court lacks jurisdiction, any ensuing judgment or default is void and subject to direct or collateral attack at any time. (Strathvale Holdings v. E.B.H. (2005) 126 Cal.App.4th 1241, 1249.)

“[O]n direct attack, lack of jurisdiction may be shown by extrinsic evidence, i.e., evidence outside the judgment roll.” (Strathvale Holdings, supra, 126 Cal.App.4th at 1249 (quoting 8 Witkin, Cal. Procedure (4th ed. 1997) Attack on Judgment in Trial Court, § 5, p. 513).) A motion to vacate a void judgment is a direct attack, and the proper procedure of a direct attack on the default is by motion made under Code of Civil Procedure section 473, subdivision (d). (Id.)

Motion to Set Aside Judgment

Lee moves under Code of Civil Procedure section 473(d) and the court's inherent authority to vacate void judgments, arguing the judgment is void because the operative FACC neither named Lee nor pleaded intentional interference, so the judgment adjudicated a nonexistent claim against unnamed parties in excess of jurisdiction and in violation of due process.

Improper CCP § 1008 Motion

As an initial matter, Lee's motion is, in substance, an attempt to relitigate the same “supersession” theory he raised in 2018 before Judge Martin, when he argued the FACC superseded the original cross-complaint. Judge Martin rejected the argument, proceeded to trial on the reinstated intentional interference claim, and entered judgment against Lee. In 2019, the Court again rejected the argument when sanctioning Lee under CCP §128.7 for his “mistaken belief that there was no pending claim.”

A party cannot evade CCP §1008 by rebranding a reconsideration request as a “void judgment” motion. Lee identifies no new law or facts and offers no explanation for failing to raise his arguments earlier. He brings this challenge more than seven years after judgment. A successor judge cannot overturn a prior judge's ruling under these circumstances.

Therefore, the motion is jurisdictionally barred on this ground alone.

Void Judgment

In November 2015, Judge Rita Miller granted Lee's anti-SLAPP motion striking the intentional interference claim. On August 7, 2017, however, the Court of Appeal reversed the anti-SLAPP order “insofar as it struck the second cause of action of the cross-complaint” and, through issuance of the remittitur on October 20, 2017, directed the trial court to permit A-Ju Tours to proceed against Lee and his law corporation on that claim. The reinstatement occurred by operation of law, and Lee's personal jurisdiction is established because he answered the reinstated claim, filed trial-related documents, appeared at the trial call on October 29, 2018, and acknowledged receiving notice of trial before withdrawing his answer for tactical reasons “to avoid any arguments of waiver.” The judgment itself recites that Lee and his corporation did not appear at trial “after having been given due notice.” These facts demonstrate that the court had both subject-matter and personal jurisdiction.

Lee argues that the judgment is void because it imposed liability on him although he was not a named party to the FACC, the only pleading he contends was operative at the time of trial. This contention is without merit because the record establishes that the Court had fundamental jurisdiction over Lee's person independent of the FACC's caption. Jurisdiction over the person, once acquired, is not divested by a party's later decision to absent himself from trial; the judgment itself recites that the Lee Cross-defendants did not appear “after having been given due notice of the time, date and place for trial.”

The December 14, 2018 judgment is not void. The motion is DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at SMCDept224@lacourt.org indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.